

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR SEPTEMBER 10, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE JUDGE

Unless the Court directs otherwise, appearances by counsel and parties in Department 38 may be made as follows:

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38, Judge Hinton:

[Court Calendars | Superior Court of California | County of Contra Costa](#)

*IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.*

THANK YOU.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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1. 9:00 AM	MSP12-00689 MATTER OF: RUBEN RAMIREZ JR HEARING IN RE: FOURTH ACCOUNT AND REPORT OF TRUSTEE AND PETITION FOR ALLOWANCE OF TRUSTEE FEES AND ATTORNEY FEES FILED BY PEARON MILLER ON 5-12-26
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Petition Approved
Proposed Order Submitted
No Appearance Required

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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2. 9:00 AM	MSP22-00327 ESTATE OF: RYAN J. BARKER HEARING IN RE: FIRST & FINAL REPORT OF ADMINISTRATOR ON WAIVER OF ACCOUNT & PETITION FOR FINAL DISTRIBUTION & FOR STATUTORY FEES FOR ATTORNEYS & REIMBURSEMENT OF COSTS FILED BY JOSEPH BARKER ON 5-13-26 Need: 1. Appearances 2. Proof of mailing First and Final Report of Administrator with notice of hearing to all beneficiaries of estate. 3. Evidence of appointment of Christopher Barker as Administrator of the Estate of Sandra Jean Barker 4. Waiver of accounting by Christopher Barker, Administrator of the Estate of Sandra Jean Barker as referenced at ¶ 11. 5. Inventory and Appraisal filed as referenced at ¶ 9 6. Evidence of agreement for proposed non pro-rata distribution. This request is governed by PrC § 11951, <i>et seq.</i>, and is not captioned (see CRC § 7.102). 7. Proposed Order Note: Court will re-review petition upon filing of Inventory and Appraisal to confirm assets on hand and statutory fee calculation.
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3. **P23-01804** **ESTATE OF: PATRICIA CANSON**
9:00 AM HEARING IN RE: MOTION TO DISMISS FOR LACK OF STANDING AND TO APPOINT STEVEN SMITH AS
EXECUTOR PER HIS PETITION FILED BY STEVEN A SMITH ON 01/02/2026 - COURT CONTINUED 5/19/26
HEARING TO 9/10/26

Need:

1. Appearances
2. Proposed Order

Notes:

1. Defendant Aurin Canson's Opposition filed 1-23-2026.
2. Notice of Motion and Motion for Summary Judgment filed by Steven A. Smith 2-20-2026, set for hearing 6-23-2026, was denied.

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4. 9:00 AM	P23-02042 HEARING IN RE: 2ND & FINAL ACCOUNT & REPORT OF TRUSTEE; PETITION TO SETTLE ACCOUNT; TO INCREASE BOND OF SUCCESSOR TRUSTEE; TO FIX & ALLOW TRUSTEE FEES & ATTY FEES FILED BY HERB THOMAS ON 5-14-26	MATTER OF: RE THE VALERIE ANGUIANO SETTLEMENT PROTECTION TRUST
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Petition Approved
Proposed Order Submitted
No Appearance Required

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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| 5.
9:00 AM | P25-00530 ESTATE OF: RAYMOND LANIER
HEARING IN RE: FIRST AND FINAL ACCOUNT AND REPORT OF ADMINISTRATOR AND PETITION FOR ITS SETTLEMENT; FOR ALLOWANCE OF STATUTORY COMPENSATION TO ADMINISTRATOR & ATTY; FOR REIMBURSEMENT OF COSTS ADVANCED; DISCHARGE OF BOND; FOR FINAL DISTRIBUTION FILED BY KEVIN MEIN ON 5-19-26

Need: <ol style="list-style-type: none">1. Appearances2. Verified declaration by petitioner to clarify amount of reserve funds to be held. Petition requests \$15,000.00; however, proposed Order reflects \$7,500.3. Verified declaration by petitioner to clarify amount of funds for which he is seeking reimbursement. Petition requests \$2,676.33; however, proposed Order reflects \$2,767.61.4. Amended Proposed Order to reflect amounts as listed in petition for item numbers 3, 4, and 7, as needed in resolution of above. |
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SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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6A. **P25-00668** **ESTATE OF: BRET YATES**
9:00 AM HEARING IN RE: PETITION FOR DETERMINATION OF ENTITLEMENT TO ESTATE DISTRIBUTION FILED BY
TANIA MOIKEHA ON 12/19/25

Need:

1. Appearances
2. Proof of mailing to all persons entitled to receive notice
3. Proposed Order

Notes:

1. Objection filed by Leilani Yates 5-8-2026.
2. Ex Parte Application for Order to Halt Removal of Estate Property filed by Leilani K. Yates 5-28-2026, is set for hearing 9-15-2026.

6B. **P25-00668** **ESTATE OF: BRET YATES**
9:00 AM HEARING IN RE: PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY WITH IAEA
FILED ON FILED BY LEILANI

Drop. Duplicate of Line 6C.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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6C.

P25-00668

ESTATE OF: BRET YATES

9:00 AM

HEARING IN RE: PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTMENTARY WITH IAEA FILED
ON 4/16/2025 BY LEILANI YATES

Need appearances

Notes:

- a. Letters of Special Administration issued to petitioner expire 12/23/2026.
- b. Objection of Bret G.P. Yates filed 10/20/2025.
- c. Supplement to Objection filed 4-2-2026.

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9. 9:00 AM	P25-00840 ESTATE OF: JOSEPH BURBULIS, JR. HEARING IN RE: PETITION FOR FINAL DISTRIBUTION ON WAIVER OF 1ST & FINAL ACCOUNTING; FOR PAYMENT OF ATTORNEY STATUTORY FEES; FOR REIMBURSEMENT OF COSTS T O ATTORNEY FILED BY MARIE K LE CLAIRE ON 5-19-26
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Petition Approved
Proposed Order Submitted
No Appearance Required

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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10.

9:00 AM

P25-01395

ESTATE OF: RONALD NEWCOMER

HEARING IN RE: REPORT ON WAIVER OF ACCOUNT, PETITION FOR FINAL DISTRIBUTION, FOR ALLOWANCE OF COMPENSATION TO ATTORNEY FOR ORDINARY SERVICES & COSTS, WAIVER OF COMPENSATION TO PERSONAL REPRESENTATIVE FOR ORDINARY SERVICES FILED BY DONALD S NEWCOMER

Need:

Verified declaration by attorney to include an itemized list of expenses of \$2,219.45 for which he is requesting reimbursement. Exhibit C at page 14 is incomplete.

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11.

9:00 AM

P25-02058

ESTATE OF: LOUELLA BONGIOVANNI

HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION WITH IAEA FILED BY NORMAN L ROBERTSON ON 11/118/25

Petitioner, brother, still must do the following:

1. Appear at the hearing
2. File a corrected proof of mailing with verification dated by server. Proof of Service attached to Notice filed 12-4-2025 is incomplete.
3. File a verified declaration by petitioner to address petition Item # 5.a.(3) or 5.a.(4) (whether decedent is survived by a registered domestic partner)
4. File a verified declaration by petitioner to address petition Item # 5.a.(7) or 5.a.(8) (whether decedent is survived by issue of a predeceased child)
5. File Waiver of Bond by Heir or Beneficiary on mandatory Judicial Council Form DE-142 or bond will be fixed at \$427,000.00. PrC § 8481

Note: Proof of Publication incorrectly stated that a Will was being admitted. Petition did not request that a Will be admitted and no copies are available for examination at the court. PrC § 8120. Nevertheless, court accepted the publication as being substantially compliant with PrC § 8121.

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**12. P25-02327 MATTER OF: THE JAMES J. WEYLAND REVOCABLE TRUST DATED 05/04/2005
UPDATED 03/06/2007 AND 02/24/2010**

9:00 AM HEARING IN RE: PETITION FOR ACCOUNTING FILED ON 12/31/25 BY JAMES P. WEYLAND

Need:

1. Appearances
2. Petition verified. PrC § 1021. CCP § 2015.5. CRC 7.103
3. Verified declaration by petitioner to state names, current addresses and relationships of all persons entitled to receive notice. LR 7.112
4. 30 days Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to receive notice, except Teresa Oatley who has responded. PrC § 17203
5. Evidence of written demand for accounting as required by PrC §17200(b)(7), not attached as indicated.
6. Verified declaration by petitioner to include copies of all trust instruments
7. Proposed Order

Notes: Opposition to Petition for Accounting filed 5/18/2026 by Teresa L. Oatley

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13. 9:00 AM	P26-00168 HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION FILED BY KRISTINA COLEY ON 5-13-26091026 Need: Verified declaration by petitioner to include names and dates of death of decedent's parents. LR 7.151(d)	ESTATE OF: JAMES KOHL
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14.

9:00 AM

P26-00857

ESTATE OF: ALLAN YANNOW

HEARING IN RE: SPOUSAL PROPERTY PETITION FILED BY CAROLYN YANNOW ON 5-15-26

Need:

1. Appearances
2. Verified declaration by petitioner to address petition Item # 5.a.(2) (whether decedent is survived by issue of a predeceased child)
3. Verified declaration by petitioner to include additional facts upon which the petitioner bases the allegation of community property, including length of marriage, whether spouses were legally separated or living apart, and when property was inherited
4. Verified declaration by petitioner to clarify percentage of property requested to be passed and confirmed as belonging to petitioner. The court can only confirm $\frac{1}{2}$ interest in community property as belonging to the surviving spouse and determine $\frac{1}{2}$ interest as passing to the surviving spouse.
5. Spousal Property Order, Judicial Council form DE-226

Note: Attachment 7 at page 3 indicates assets were inherited by decedent.

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15.	P26-00942	MATTER OF: THE FRANKLIN REVOCABLE FAMILY TRUST DATED NOVEMBER 26, 1991, AS AMENDED
9:00 AM	HEARING IN RE: PETITION FOR REMOVAL OF TRUSTEE AND APPOINTMENT OF SUCCESSOR TRUSTEE; INSTRUCTIONS; ACCOUNTING; MEDIATION FILED ON 5/19/26 BY DANA R. FRANKLIN	
	Need: 1. Appearances 2. Proposed Order	
	Notes: 1. Order Approving Ex Parte Application to Suspend filed 6-9-2026. 2. Motion to Dismiss Petition for Removal of Trustee filed 7/4/2026 by Roger R. Franklin 3. Petition for Instructions filed by Ryan De La Fuenten, Interim Successor Trustee, 8-24-2026, is set for hearing 12-29-2026.	

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16.	P22-01799	MATTER OF: JANE SIMMONS EDGINTON REVOCABLE TRUST DATED SEPTEMBER
		1, 2021
1:30 PM	COURT TRIAL HEARING	
	Need appearances	

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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17. 1:30 PM	P23-00669 COURT TRIAL HEARING	MATTER OF: THE SHEILA J. KILGORE REVOCABLE TRUST DATED JUNE 30, 2000
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Need appearances